

Court No. - 37

Case :- WRIT - C No. - 43972 of 2017

Petitioner :- Dinesh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Akhilesh Kumar Pandey

Counsel for Respondent :- C.S.C.,Ajay Kumar

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Rajiv Lochan Mehrotra,J.

Heard learned counsel for the petitioner and Sri Ajay Kumar, learned counsel for the respondent/Electricity Department.

A demand of electricity dues sought to be recovered from the petitioner has been challenged in this writ petition. Learned counsel submits that the enhanced amount sought to be recovered from the petitioner is erroneous and the petitioner has already approached the Executive Engineer concerned by giving a legal notice.

The petitioner instead of resorting to litigation should take recourse to the provisions of Clause 6.5 of the U.P. Electricity Supply Code, 2005. We accordingly dispose off this petition with liberty to the petitioner to approach the second respondent along with a certified copy of this order who shall examine the claim of the petitioner and pass an appropriate order within three weeks of its presentation before him.

Writ petition is disposed off with the said directions.

Order Date :- 19.9.2017

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